

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC doing business as COLONIAL MOBILE
MANOR,

Plaintiff,

vs.

Case No. 2016-CC

GAYLA SUE GRIFFITHS and ANY
UNKNOWN TENANT(s),

Defendants.

**COMPLAINT SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC doing business as COLONIAL MOBILE MANOR, sues the Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a foreign limited liability company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, GAYLA SUE GRIFFITHS, is a natural person at all times relevant believed to reside in and own a mobile home located at 900 - 9th Avenue East, Palmetto, on Lot #20,

Manatee County, Florida.

4. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 - 9th Avenue East, Lot #20, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, known as COLONIAL MOBILE MANOR.

6. Plaintiff, as landlord, leased to Defendant, GAYLA SUE GRIFFITHS, Lot #20 of the above stated mobile home park at a monthly rental fee of \$459.00 for an ongoing period of one (1) year, pursuant to Florida Statute §723.031. The Defendant owes lot rent for the months of June and July, 2016 in the sum of \$918.00, plus late rent fees in the amount of \$90.00 (\$45.00 per month), pursuant to the rental agreement. In addition Defendant is in arrears on the water/sewer bills in the amount of 488.93 for the months of April, June and July 2016, plus late payment fees (\$35.00 per month) in the amount of \$105.00.

7. Defendant, GAYLA SUE GRIFFITHS, is in default of the rental agreement with Plaintiff by failure to pay the total sum of \$1,601.93 on or before July 1, 2016.

8. On June 7, 2016, Plaintiff served on Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent. A copy of this Notice is attached and marked Plaintiff's Exhibit A accompanied by a copy of the certified mail receipt for the same.

9. Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, water/sewer bills and late fees within five (5) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

10. ANY UNKNOWN TENANT(s) may reside or have an interest in Lot #20 of COLONIAL MOBILE MANOR but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

11. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

12. Plaintiff is entitled to the summary procedure of Florida Statute §51.011.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES

13. This is an action seeking less than \$5,000.00 excluding costs, interest and attorney fees.

14. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, re-alleges the facts contained within paragraphs 1 through 12 as though fully set forth herein.

15. Defendant, GAYLA SUE GRIFFITHS, owes the Plaintiff the total sum of \$1,601.93 plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, GAYLA SUE GRIFFITHS, for damages, costs, and a reasonable attorney's fee.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

16. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and

713.77 of Florida Statutes.

17. The Plaintiff re-alleges the facts contained within paragraphs 1 through 12 and 15 as though fully set forth herein.

18. Defendant, GAYLA SUE GRIFFITHS, is the registered owner of a mobile home identified as a **1972 mobile home, mauve in color, Vehicle Identification Number FF10004F, Title Number 0004957136**, which is located on Lot #20 of the property leased by the Plaintiff to the Defendant.

19. The Plaintiff is entitled to a landlord's lien against the mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

20. The Plaintiff claims entitlement to enforce its lien against the mobile home by judicial sale pursuant to Florida Statute §45.031.

21. Upon Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), it will have perfected its landlord lien against the personal property of Defendants, namely a **1972 mobile home, mauve in color, Vehicle Identification Number FF10004F, Title Number 0004957136** to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

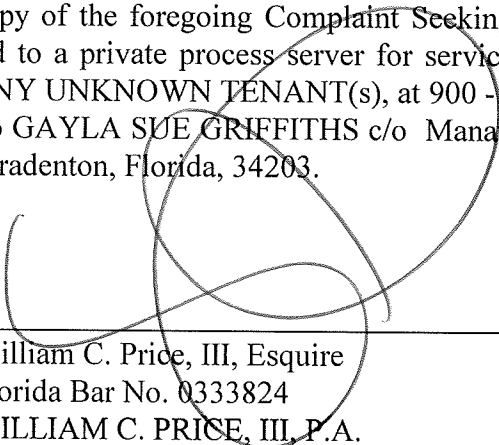
22. The Plaintiff is entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendant, GAYLA SUE GRIFFITHS, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial

sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), at 900 - 9th Avenue East, Lot #20, Palmetto, Florida, 34221, and to GAYLA SUE GRIFFITHS c/o Manatee Springs Care & Rehabilitation, 5627 - 9th Street East, Bradenton, Florida, 34203.



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